

2:00 PM

LINE 6

24-CIV-06424

MARTA BOGACZYNSKA VS. SCOTT TURNER, ET AL.

MARTA BOGACZYNSKA
SCOTT TURNER

AARON P MINNIS
SHANNON R CLAWSON

MOTION TO COMPEL PLAINTIFF'S CONTINUED DEPOSITION AND FOR SANCTIONS

TENTATIVE RULING:

This as an employment case. Plaintiff Marta Bogaczynska has sued Defendants Pliant Therapeutics, Inc. and Scott Turner for sexual harassment, hostile work environment, sexual battery, and battery. Plaintiff has further sued Defendant Pliant for failure to prevent harassment.

Here, Defendant Turner seeks an order compelling the continued deposition of Plaintiff. Defendant further requests monetary, issue, evidentiary, and terminating sanctions against Plaintiff.

This issue before the Court is strikingly similar to the issue brought before the Court on a previous motion to compel Plaintiff's continued deposition, filed by Defendant Pliant. In the order on that motion, this Court noted:

This is the type of motion that never should have to been brought before the Court because good faith meet-and-confer negotiations should have resolved the issue. Based upon the Court's review of the facts, the issue of the timing of Plaintiff's deposition occurred because the parties did not talk about their expectations for the deposition beforehand and then did not meaningfully work for solutions after the deposition could not be completed in one day.

(Fernandez Decl., ¶ 3, Ex. 1, Order dated December 27, 2025.) The Court expresses the same sentiment here, eight months later, as the present motion reveals a similar failure of the parties to work together to resolve the routine issue of continuing a deposition that was not completed on the date noticed.

The Court's previous order further stated that "while it is presumably unlikely that Plaintiff's deposition will take more than one [more] day, *the parties shall nonetheless establish an agreeable plan to continue Plaintiff's deposition, should that be necessary.*" (*Ibid.*, emphasis added.) It appears to the Court that no such agreeable plan was established.

Defendant's motion to compel is GRANTED, with the condition that Defendant Turner's examination of Plaintiff not exceed eight (8) hours, excluding breaks. The Court imposes ***no requirement*** that the deposition be completed on one day or that it be continued on consecutive days.

Defendant's request for sanctions is DENIED in its entirety.

BACKGROUND

Previous Dispute Concerning Plaintiff's Continued Deposition

Plaintiff's deposition first commenced on July 31, 2025, with questioning by Plaintiff's counsel. (Fernandez Decl., ¶ 2.) That deposition was not completed in a single day. A dispute arose regarding when the deposition should continue, with Plaintiff insisting it must resume the very next day — August 1, 2025 — or not at all. (*Id.*) Plaintiff's counsel and counsel for Turner were not available on August 1, and Plaintiff refused to appear on any other date. (*Id.*) Defendant Plaintiff filed a motion to compel deposition.

On December 27, 2025, the Court granted Defendant Plaintiff's motion. (Fernandez Decl., ¶ 3, Ex. 1, Order dated December 27, 2025.) In the Order, this Court stated:

This is the type of motion that never should have to been brought before the Court because good faith meet-and-confer negotiations should have resolved the issue. Based upon the Court's review of the facts, the issue of the timing of Plaintiff's deposition occurred because the parties did not talk about their expectations for the deposition beforehand and then did not meaningfully work for solutions after the deposition could not be completed in one day.

(*Ibid.*)

The Court rejected Plaintiff's argument that Defendant was required to complete the deposition on consecutive days, notwithstanding boilerplate language in the deposition notice stating that the deposition would be completed "day to day" and an email from Plaintiff expressing such an expectation regarding the originally noticed deposition date. (*Ibid.*) However, the Court also noted that, prior to the deposition, Defendant failed to raise the issue of when the deposition would be completed in the event it was not completed on the noticed date, contrary to best practice. (*Ibid.*)

In granting the motion, the Court added: "Further, while it is presumably unlikely that Plaintiff's deposition will take more than one day, the parties shall nonetheless establish an agreeable plan to continue Plaintiff's deposition, should that be necessary." (*Ibid.*)

Current Dispute Concerning Plaintiff's Continued Deposition

Following the Court's December 2025 order, the parties met and conferred and agreed to continue Plaintiff's deposition on February 3 and 4, 2026. (Fernandez Decl., ¶ 4.) Plaintiff served a Notice of Continued Deposition providing that any incomplete deposition would continue on mutually agreeable future dates. (*Id.*, Ex. 2.) Plaintiff did not object. On February 2, 2026, Plaintiff's counsel notified counsel for Defendants that Plaintiff was experiencing an unspecified

medical issue and would be unable to appear for the deposition. (*Id.*, ¶ 5, Ex. 3.) The parties agreed to reschedule. (*Id.*) The deposition was reset for March 24–25, 2026, again with notice that any incomplete session would continue on mutually agreeable dates. (*Id.*, ¶ 7, Ex. 4.) Plaintiff again did not object. (*Id.*)

In early March 2026, Plaintiff’s therapists produced approximately 450 pages of additional records. (Fernandez Decl., ¶ 8.) Plaintiff’s counsel advised the parties on March 16, 2026, that Plaintiff intended to object to the use of portions of those records and agreed to re-produce redacted copies of the records reflecting those objections. (*Id.*, ¶ 9.) Plaintiff’s counsel suggested rescheduling the March 25 deposition to March 30 and 31 to allow counsel sufficient time to review the redacted records. Plaintiff’s counsel offered to continue on April 6–7 or May 7–8. (*Id.*, ¶¶ 9-10.) On March 19, 2026, Plaintiff’s lead counsel advised all parties of a death in her family, necessitating rescheduling the March 24-25 deposition. (*Id.*, ¶ 11, Ex. 5 at p. 24.)

During the parties’ discussions regarding rescheduling the deposition, Plaintiff’s counsel advised that she was unavailable on April 7 due to the need to travel to the funeral of her family member. (*Id.*, Ex. 7, at pp. 38-45.) Plaintiff’s counsel stated that if the deposition could not be held on April 6–7, it would have to be postponed to May 2026. (*Id.*, at pp. 35-37.) Plaintiff served a Second Amended Notice for the deposition to continue on April 6, which expressly stated: “If Plaintiff’s deposition is not completed on April 6, 2026, it will not continue on April 7, 2026, but will continue on a future date(s) to be scheduled based on mutual agreement of all parties and all counsel, until completed.” (*Id.*, Ex. 6, Second Amended Deposition Notice of Continued Deposition of Plaintiff.) Plaintiff did not serve formal objections to that notice but reiterated via email Plaintiff’s position that the deposition must proceed the following day or not at all. (*Id.*, ¶ 17, Ex. 7, at pp. 37-39.)

Plaintiff appeared for her continued deposition on April 6, 2026, commencing at approximately 10:00 a.m. as noticed, with questioning by Plaintiff’s counsel, and continuing until approximately 6:00 p.m. (Fernandez Decl., ¶¶ 19-20.) At approximately 6:00 p.m., Plaintiff’s counsel indicated that she had completed her questioning, except for questions relating to the redacted portions of Plaintiff’s therapist records on which Plaintiff intended to file a motion to compel. (*Id.*, ¶¶ 19-20.) Given that the court reporter had been typing for approximately eight hours and it was 6:00 p.m., Plaintiff’s counsel did not begin her questioning of Plaintiff on behalf of Plaintiff. Nor did Plaintiff’s counsel start her questioning on April 7, given that she knew Ms. Lazerson could not attend due to a family funeral and it would not be professionally courteous to proceed without her. (*Id.*, ¶ 21.)

Roughly two weeks later, on April 20, 2026, Defendant Plaintiff’s counsel emailed the parties proposing dates to continue Plaintiff’s deposition. (Fernandez Decl., ¶ 22, Ex. 9.) On April 22, 2026, Plaintiff responded with a detailed email stating Plaintiff’s position that the deposition was complete because it was not continued on consecutive dates, contrary to Plaintiff’s consistent demand. (Supp. Fernandez Decl., ¶ 21, Ex. 19, Plaintiff’s Email Dated June 22, 2026.) Plaintiff titled the email ““meet and confer re third deposition.” (*Ibid.*) Defendant Plaintiff filed this motion without responding to Plaintiff’s meet and confer email. (Ettinghoff Decl., ¶ 13.)

LEGAL STANDARD

A noticing party may move the Court for an order compelling a deponent's attendance and testimony, including an appearance for a continued examination. (Code Civ. Proc., § 2025.450, subd. (a).)

As a general matter, civil litigants have a statutory right to take depositions.

By refusing to compel a witness to answer proper questions, a trial court may effectively deny a litigant the right to take a deposition, since a right without means of enforcement, if such can exist, is of little practical value. Consequently, trial courts have been directed by writ of mandate to compel witnesses to answer questions on the taking of their depositions on the theory that it is their judicial duty to secure to a party the means of obtaining in advance of the trial information concerning the issues and the means of producing at the trial the evidence necessary to sustain his action or defense.

(*McClatchy Newspapers v. Superior Court* (1945) 26 Cal. 2d 386, 392.)

The Supreme Court of California has recognized the trial court's power to alter the timing of discovery proceedings, including depositions, to ensure fairness and proper administration of justice. (*Rosemont v. Superior Court of Los Angeles County* (1964) 60 Cal.2d 709, 714.)

Here, Defendant Turner is not the "noticing party" of Plaintiff's deposition. However, Code of Civil Procedure section 2025.450 separately authorizes relief "in favor of any party who, in person or by attorney, attended in the expectation that the deponent's testimony would be taken pursuant to that order." (*Id.*, subd. (h)(2).) In cases with multiple defendants, it is common practice for each defendant's counsel to question the plaintiff at one noticed deposition, rather than notice separate depositions. Further, Defendant's motion here concerns a deposition that this Court previously ordered be completed, and the Court retains inherent power to "compel obedience to its judgments, orders, and process." (Code Civ. Proc., § 128, subdivision (a)(4).) The previous order contemplated that Defendant Turner would participate in the deposition. (Fernandez Decl., Ex. 1, Order Compelling Deposition, at p. 3 ["[T]he Court finds that **Defendants** would be denied the right to obtain potentially relevant information if another session of Plaintiff's deposition was not taken." (emphasis added)].) Thus, while Defendant Turner is not the "noticing party," the Court exercises its discretionary authority to consider this motion to compel.

ANALYSISMeet and Confer

A motion to compel a deposition "shall be accompanied by a meet and confer declaration." (Code Civ. Proc., § 2025.450.) The statute does not distinguish between motions to compel prior to any court order compelling a deposition and motions to compel filed after such an order.

Here, Defendant's counsel's declaration in support of Defendant's opposition only establishes that she sent an email Plaintiff's counsel on April 20, 2026, roughly two weeks after Plaintiff's second day of testimony, proposing dates to continue Plaintiff's deposition – and that Plaintiff's counsel responded two days later by stating that Plaintiff's position was that the deposition had concluded because it was not continued to the following day, April 7, 2026. (Fernandez Decl., ¶¶ 22-24.) Defendant did not respond. More specifically, Defendant failed to respond when Plaintiff affirmatively took the position that is the subject of this motion. The Court does not find this to be a good-faith effort to meet-and-confer on Defendant's part.

Defendant's supplemental declaration fares no better. Defendant argues that Plaintiff's counsel sent the email stating his position that the deposition was complete, he changed the subject line of the email chain to "meet and confer re third deposition." (Supp. Fernandez Decl., Ex. 19, Plaintiff's Email Dated June 22, 2026.) However, as already noted, Defendant did not respond to that email. If anything, the email reflects that *Plaintiff* attempted to initiate a meet and confer on the issue and Defendant proceeded to file the motion without engaging.

In the interest of resolve this issue, the Court exercises its discretion to consider the merits of the motion notwithstanding Defendant's failure to meaningfully meet and confer prior to filing this motion. In doing so, the Court notes that Defendant's counsel's supplemental declaration supports that, after the motion was filed, the parties made a substantially better effort to resolve pending discovery disputes, including rescheduling Plaintiff's continued deposition, and that those efforts were initiated by Defendant's counsel after the Trial Setting Conference held in this matter. (See Fernandez Decl., Exs. 10-16.)

Motion to Compel

Like before, Plaintiff argues that Defendants were obligated to complete her deposition on consecutive days and failed to do so. Plaintiff asserts that this Court's previous order held that "a party must clearly and specifically communicate [the] expectation [that a deposition be held on consecutive days], in advance of the session, for it to control." (Oppo., at p. 8:14-17.) Plaintiff's assertion rests, at least in part, on the Court noting that Plaintiff's previous expectation that her deposition would be completed on consecutive days was "colorable." (*Ibid.*)

Plaintiff misinterprets the Court's Order and, the Court apologizes if the order was not explicit enough. The Court found Plaintiff's expectation "colorable" in the sense that it was not an unreasonable misunderstanding under the circumstances – where the deposition notice included boilerplate language that the deposition would be held day-to-day and Plaintiff had previously expressed an expectation of such – and therefore did not warrant sanctions. It was not the Court's opinion that a deponent may bind opposing parties to completing a deposition on consecutive days by unilaterally demanding such. While there may be some circumstances where such a finding could be warranted, the Court is not aware of any authority supporting such a proposition as a general principle.

This motion is no exception, particularly given that the deposition notice for Plaintiff's April 6, 2026 deposition explicitly stated: "If Plaintiff's deposition is not completed on April 6, 2026, *it will not continue on April 7, 2026, but will continue on a future date(s) to be scheduled based on mutual agreement of all parties and all counsel, until completed.*" (Decl., Ex. 6, Second Amended Deposition Notice of Continued Deposition of Plaintiff [emphasis added].) And further where, in response to Defendant's attempt to demand the deposition be completed on consecutive days (if necessary), Plaintiff's counsel responded: "We will proceed with Plaintiff's deposition on April 6 *as noticed.*" (*Id.*, Ex. 7. Email Correspondence, March 24-26, 2026 [emphasis added].)

Plaintiff further argues that Defendant's position that he will proceed only "without artificial time limitations" (i.e. without agreeing to complete the deposition in one day or on consecutive days) would potentially allow "the deposition [to] continue indefinitely through a series of intermittent sessions, with no meaningful limitation on when the examination will finally conclude." (Oppo., 6:27 – 7:2.) Though heavy-handed, Plaintiff's concern is not without merit. Plaintiff has already been deposed on two separate days for a total of approximately 15 hours (not excluding breaks). The Court stated in its previous ruling that "it is presumably unlikely that Plaintiff's deposition will take more than one [more] day." Yet, after an additional day of Plaintiff's deposition, Defendant Turner's counsel has not yet questioned Plaintiff, and Defendant Plaintiff's questioning remains open as to questions relating to previously redacted portions of Plaintiff's therapist records.

Accordingly, the Court GRANTS Defendant Turner's motion to compel, with the limitation that Defendant Turner's questioning shall not exceed eight (8) hours, excluding breaks. The Court imposes **no requirement** that the deposition be completed on one day or, if necessary, on consecutive days. Absent good cause or an agreement of the parties, the deposition shall be completed by October 23, 2026. In light of the nature of the case, the court allows Plaintiff to have a support person with her during the deposition. This support person may not say anything during the deposition, but is only there to provide support. A support person often appears in court during testimony of the type that plaintiff will be providing at her deposition and, if Plaintiff would like a support person, the Court finds it a reasonable accommodation.

Prior to setting the deposition, the parties shall meet and confer to establish mutually agreeable times – including mutually agreeable dates to continue the deposition in the event it is not completed on the date(s) noticed. Given complications related to Plaintiff taking off work, the Court encourages the parties to consider weekend deposition dates. If the deposition is continued and complications arise as to the agreed upon dates, the Court expects the parties to resolve the matter collegially and without Court intervention. That expectation extends to other discovery disputes that may be pending. The parties are reminded of their professional obligations, including their obligations to meet and confer in good faith to resolve issues and to respect the legitimate interests of fellow members of the bar, which includes opposing parties in litigation. The Court notes that it is in everyone's best interest that there not be a motion in limine at trial to exclude certain evidence because the party did not have enough time at deposition to ask questions.

Sanctions

Defendant's request for monetary sanctions is DENIED.

The Court finds that sanctions would be unjust here where, as noted above, Defendant failed to make meet and confer efforts prior to bringing this motion and parties collectively failed to establish an agreeable plan to continue Plaintiff's compelled deposition, if necessary, as the Court instructed in its previous order.

Defendant's request for issue, evidentiary, and terminating sanctions is DENIED.

The Court finds that such sanctions are not warranted here. The Court notes that Plaintiff appeared for her deposition as required by this Court's previous Order and based her refusal to continue that deposition on a date other than April 7, 2026, on a misinterpretation of commentary in this Court's previous Order regarding whether a deposition may be required to be continued day-to-day based on a party's express demand made prior. The Court finds Plaintiff's conduct here distinct from disobeying a Court order.

If the tentative ruling is uncontested, it shall become the order of the Court. Thereafter, counsel for Defendant Turner shall prepare a written order consistent with the Court's ruling for the Court's signature, pursuant to California Rules of Court, rule 3.1312, and provide written notice of the ruling to all parties who have appeared in the action, as required by law and the California Rules of Court.

2:00 PM

LINE 7

24-CIV-06446

PATRICK SCOTT, ET AL. VS. FORD MOTOR COMPANY, ET AL.

PATRICK SCOTT
FORD MOTOR COMPANY

ROGER KIRNOS
MICHAEL D MORTENSON

PLAINTIFFS' MOTION FOR ATTORNEYS' FEES, COSTS AND EXPENSES

TENTATIVE RULING:

Plaintiffs Patrick Scott and Cheryl McBride's motion for attorneys' fees, costs and expenses is GRANTED-IN-PART pursuant to Civil Code section 1794 and the terms of the parties' settlement agreement.

On October 14, 2024, plaintiffs filed this Song-Beverly case, and on December 17, 2025, plaintiff filed a notice of conditional settlement. Plaintiffs seek a total fee award of \$16,528.50 (lodestar amount of \$11,019.00 with a 1.5 multiplier) and costs of \$3,102.38.

Generally in this county, the parties have been able to negotiate their attorneys' fees in Song-Beverly actions without the necessity of bringing a motion. No agreement was reached in this case and plaintiffs filed this motion, which defendant has opposed. The court finds the sniping between counsel, especially in the reply brief unprofessional.

As the prevailing party, plaintiffs' counsel are entitled to their attorneys' fees. A buyer who prevails in an action under the Song-Beverly Warranty Act is entitled to recover costs and expenses, including attorney's fees, reasonably incurred in connection with the commencement and prosecution of the action. (Civ. Code, § 1794; *Reynolds v. Ford Motor Co.* (2020) 47 Cal.App.5th 1105 (*Reynolds*)). The Legislature has recognized that lawyers who take on Song-Beverly cases that seek to vindicate fundamental public policies should receive reasonable attorneys' fees. (*Reynolds*, at p. 1111.)

Attorneys' fees in a Song-Beverly case are based upon the lodestar method. (*Reynolds, supra*, 47 Cal.App.5th at p. 1112.) California courts have consistently held that a computation of time spent on a case and the reasonable value of that time is fundamental to a determination of an appropriate attorneys' fee award." (*PLCM Group v. Drexler* (2000) 22 Cal.4th 1084, 1095 [internal quotations and citation omitted].) "The major factors the trial court must consider in determining an attorneys' fee award include: the nature of the litigation and its difficulty; the amount of money involved in the litigation; the skill required and employed in handling the litigation; the attention given to the case; the attorney's success, learning, age and experience in the particular type of work demanded; the intricacy and importance of the litigation; the labor and necessity for skilled legal training and ability in trying the case; and the amount of time spent on the case." (*Id.* at p. 1508 [citing *In re Marriage of Cueva* (1978) 86 Cal.App.3d 290, 296 and *Nevin v. Salk* (1975) 45 Cal.App.3d 331, 343].) "[T]he fee setting inquiry in California ordinarily